

connected with the court, should be at once raised to the office of second baron, above the other occupants of that bench.

The whole proceeding is very extraordinary. The charge was for receiving bribes contrary to his oath; an offence which did not touch the delinquent's life by any law then existing; and so the commissioners appointed for his trial found, and therefore sentenced him only to imprisonment, and the forfeiture of his lands and goods. It is curious then to see the king endeavouring to enforce the capital penalty by his own personal declaration to Thorpe, when he took the oath, that he should be hanged if he infringed it; and afterwards, when these judges had complied with his mandate, immediately granting a pardon of the extreme part of the sentence; as if he were conscious that he was exceeding the law. His order, a few days subsequently, to lay the proceedings before parliament, is further evidence of his own doubts; and on the discussion in the following February, though the judgment was affirmed by the compliant Peers, it was with a reservation which sufficiently manifested their hesitation in recognising it; viz., that such a judgment should be only good against a delinquent who had the administration of the laws of England. The effect which the king desired was no doubt produced; and being satisfied with showing how far his power would extend in similar cases, it is not improbable that, after a decent term of purgation, he would be glad to avail himself of the services of a learned and useful man, not by restoring him to the high place he had before occupied, but by placing him in the second seat on another bench.

From a passage in the *Liber Assisarum* of 28 Edward III., p. 145., where Thorpe is said to have been "then made chief justice," it might be inferred that he was restored to his